

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
LAUREN BONILLA,

Plaintiff,

-against-

Index No.:

**THE CITY OF NEW YORK, POLICE OFFICER
NICHOLAS A. ZANFARDINO (Tax Id #: 966409)
and POLICE OFFICER MATTHEW D. MCKAY
(Tax Id #: 970693),**

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff, LAUREN BONILLA, by her attorneys, GUERCIO & GUERCIO, LLP, complaining of Defendants, THE CITY OF NEW YORK (hereinafter referred to as “City”), NICHOLAS A. ZANFARDINO (Tax Id #: 966409) (hereinafter referred to as “Zanfardino”) and POLICE OFFICER MATTHEW D. MCKAY (Tax Id #: 970693) (hereinafter referred to as “McKay”), and alleges as follows:

Parties

1. Plaintiff resides in the State of New York, County of Queens.
2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK (hereinafter the “City”), was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.

NYPD Defendants

3. At all times hereinafter mentioned, Defendant, City, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
4. At all times hereinafter mentioned, Officer Zanfardino was a police officer with the New York Police Department (hereinafter “NYPD”).

5. At all times hereinafter mentioned, Officer Zanfardino was acting within the scope of his employment as a police officer with the NYPD.

6. At all times hereinafter mentioned, Officer Zanfardino was acting under color of state law.

7. At all times hereinafter mentioned, Officer McKay was a police officer with the New York Police Department (hereinafter "NYPD").

8. At all times hereinafter mentioned, Officer McKay was acting within the scope of his employment as a police officer with the NYPD.

9. At all times hereinafter mentioned, Officer McKay was acting under color of state law.

10. At all times hereinafter mentioned, Officer Zanfardino is sued individually and in his official capacity.

11. At all times hereinafter mentioned, Officer McKay is sued individually and in his official capacity.

CONDITIONS PRECEDENT

12. That on or about January 30, 2024, plaintiff filed and served a Notice of Claim.

13. That more than thirty (30) days have elapsed since the service of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

14. That this action is brought within one (1) year and ninety (90) days from the date that the claims accrued.

15. That Plaintiff has complied with all conditions precedent applicable to the instant action.

16. That this action falls within one or more of the exceptions of CPLR 1602, including, but not limited to CPLR 1602(11).

17. That Venue is proper based upon where the action accrued.

THE FACTS

18. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

19. That on or about November 2, 2024, at approximately 3:30 p.m., plaintiff was lawfully present inside her apartment located at 265-20 74th Ave., Apt. B6, Glen Oaks, New York, when police officers unlawfully entered plaintiff's apartment and her bedroom.

20. That the reason police officers entered plaintiff's apartment and her bedroom was to perform a wellness check of plaintiff.

21. That plaintiff did not consent to the police officers' warrantless entry into her apartment and bedroom, and there were no exigent circumstances that authorized the police officers' warrantless entry.

22. That the police officers told plaintiff that they were going to take plaintiff to the hospital.

23. That the police officers, including Zanfardino and McKay, did not have reason to believe that plaintiff was a danger to herself or others.

24. That when plaintiff refused to go to the hospital, the police officers, including McKay and Zanfardino, assaulted and battered plaintiff.

25. That the police officers handcuffed plaintiff. Plaintiff repeatedly complained that the handcuffs were causing pain and repeatedly requested that the officers remove the handcuffs.

However, the police officers, Zanfardino and McKay, refused to remove the handcuffs or loosen the handcuffs despite plaintiff's repeated complaints.

26. That because of the tight handcuffing, plaintiff suffered physical injuries, including physical injuries to her wrists.

27. That the police officers placed plaintiff into custody and escorted plaintiff to the hospital against her will or consent.

28. That at the time the police officers placed plaintiff into custody and escorted plaintiff to the hospital against her will, the police officers did not have any basis to believe that she was a danger to herself or others.

29. That at all times herein mentioned, Officers Zanfardino and McKay, acted jointly and in concert with one another in connection with the entry, seizure, use of force, handcuffing and imprisonment of plaintiff.

30. That Officers Zanfardino and McKay, each had reasonable opportunities to intervene to prevent and/or stop that conduct, and each deliberately and intentionally failed and refused to do so.

31. That the actions of Officers Zanfardino and McKay were intentional.

32. That as a result of the actions of Defendants and the officers, plaintiff suffered significant injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of her liberty, economic loss, suffered physical injuries, and has been otherwise damaged.

FIRST CAUSE OF ACTION AGAINST DEFENDANTS

(False Imprisonment Under NY State Law)

33. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

34. That plaintiff was falsely imprisoned by the City, through its police officers.

35. That Defendant City, through its police officers, wrongfully detained and imprisoned plaintiff without a warrant.

36. That plaintiff was conscious of her confinement.

37. That plaintiff did not consent to the confinement.

38. That at the time of plaintiff's false imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the imprisonment was false and without legal justification.

39. That as a result of plaintiff's false imprisonment, plaintiff was caused to suffer personal injuries, violation of civil rights, physical injuries, emotional distress, anguish, anxiety, fear, humiliation, damages to reputation and character, among other injuries.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS

(Assault and Battery Under NY State Law)

40. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

41. That plaintiff was assaulted and battered by Defendant City, through its police officers.

42. That the aforementioned actions of Defendants were willful, and wanton and Defendants acted with reckless disregard for the consequences of their actions.

43. That as a result of plaintiff's assault and battery, plaintiff was caused to suffer personal injuries, violation of civil rights, physical injuries, emotional distress, anguish, anxiety, fear, humiliation, among other injuries.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS

(Trespass Under NY State Law)

44. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

45. That the City, through its police officers, unlawfully and intentionally entered Plaintiffs' apartment and bedroom without consent and without a warrant.

46. That defendants did not have any legal justification for entering plaintiff's apartment and bedroom.

47. As a result of the defendants' unlawful entry into plaintiff's apartment, plaintiff was caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, and humiliation, among other injuries.

FOURTH CAUSE OF ACTION AGAINST ZANFARDINO and MCKAY

(42 U.S.C. § 1983: Fourth and Fourteenth Amendment Violations)

48. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

49. That the aforesaid actions by Officers Zanfardino and McKay in the warrantless entry into plaintiff's apartment and bedroom, assaulting and battering plaintiff, falsely imprisoning plaintiff and taking her to the hospital against her will constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST ZANFARDINO and MCKAY

(42 U.S.C. § 1983: Failure to Intervene)

50. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

51. That the aforesaid actions by Officers Zanfardino and McKay in failing to intervene to prevent and/or stop the aforesaid improper conduct by his fellow officers entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Supervision and Retention)

52. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

53. That the aforesaid actions by the officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of the individual defendants.

SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

(Intentional Infliction of Emotional Distress)

54. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

55. That the aforesaid actions by the individual defendants constitute intentional infliction of emotional distress of plaintiff, as the individual defendants conduct was extreme and outrageous and caused Plaintiff severe emotional distress, for which the individual defendants are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(NYC Administrative Code § 8-802)

56. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

57. That the aforesaid actions by Defendants constituted unreasonable searches and seizures and uses of excessive force in violation of plaintiff's rights pursuant to NYC Administrative Code § 8-802, and entitle plaintiff to recover monetary damages under NYC Administrative Code § 8-803.

JURY DEMAND

58. Plaintiff demands a trial by jury on all causes of action.

WHEREFORE, Plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against defendants Zanfardino and McKay in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorneys' fees against defendants Zanfardino and McKay pursuant to 42 U.S.C. § 1988, and the costs and disbursements of this action.

Dated: Farmingdale, New York
November 1, 2024

Yours, etc.
GUERCIO & GUERCIO, LLP
Attorneys for Plaintiff


JOHN J. BRADLEY
77 Conklin Street
Farmingdale, NY 11735
(516) 694-3000

VERIFICATION

JOHN J. BRADLEY, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

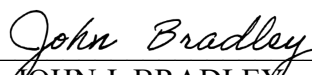
That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff is that plaintiff does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff's file maintained by your affirmant's office.

Dated: Farmingdale, New York
November 1, 2024



JOHN J. BRADLEY